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IN THE DISTRICT COURT OF APPEAL
FIRST DISTRICT OF FLORIDA

JUSTIN GREEN,

Plaintiff/Appellant,

vs.

ALACHUA COUNTY, and
the HONORABLE RON DESANTIS,
in his capacity as Governor of the State
of Florida,

Defendant/Appellee.
_____/

CASE NO.: 1D20-1661
L.T. No.: 2020-CA-001249

INITIAL BRIEF OF JUSTIN GREEN, APPELLANT

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PRELIMINARY STATEMENT

Citations to the Appendix are cited as App. ##.

The Alachua County Code of Ordinances is cited as "Charter § xx.yy". The Trial Court's Order on Appeal is cited as "App. ##, Order p. x;".[1] The transcript from the Hearing on the Appellant's Emergency Motion for Injunction is cited as "App. ##, Tr. xx:yy". The County's Response to the Emergency Motion for Injunction is cited as "App. ##, Response p. x".

STATEMENT OF THE FACTS AND CASE

Procedural History

Appellant Justin Green filed his complaint arguing that (1) the County lacked authority for the mask mandate, and (2) the County's Emergency Order impaired the exercise of his privacy, First Amendment, and related fundamental rights, and (3) raised Equal Protection issues. Justin then filed his Emergency Motion for a Temporary Injunction (the "Emergency Motion") focusing on the issues of the County's lack of authority, the right to privacy (under the Florida and Federal Constitutions), and First Amendment free speech issues and related fundamental rights.

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[1] The most current form of the County's Order is not included in the record; the Appellant will move to supplement the record with the most up-to-date version after filing this Brief.

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On May 21, 2020, the Trial Court held an evidentiary hearing on the Emergency Motion (the "Hearing"), and entered an Order denying the Emergency Motion, finding that the mask requirement in the County's Emergency Order did not invade any of Justin's constitutional rights (the "Order").[2] App. 10, Order p. 6.

The Parties: Appellee Alachua County

Appellee Alachua County is one of 67 counties in the State of Florida, with a population of approximately 270,000 (the "County"). The County itself is managed by a five-member board of county commissioners (the "Commission" or "BOCC"). The County is a home rule charter county subject to its charter, or code of ordinances (the "Charter" or "County Code").[3]

Chapter (or "Section") 27 of the Alachua County Code provides for the County's emergency authority. The County's state of emergency may only last seven days, after which it must be extended in 7-day increments. Charter § 27.07(1). The Charter provides that, in a state of general emergency, the chair of the BOCC—currently Robert "Hutch" Hutchinson—shall be designated to be the "Official Authority" in the county (the "Chair"). § 27.07(4).

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[2] The Trial Court did not, apparently, rule on the authority issue. At least, the Order is silent as to the determination of that issue. The Order does mention the authority issue in its second paragraph by way of introduction.

[3] The Alachua County Code of Ordinances (2020), https://library.municode.com/fl/alachua_county/codes/code_of_ordinances.

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Section 27.08 of the Charter is captioned "Official authority; general powers and duties" and—as the name suggests—provides for all the various types of things that the Chair can impose by executive order under a state of emergency.

Under the general powers section, the Chair can, among other things: limit the sale of firearms and explosives, prohibit protests and parades, regulate business activities and close businesses, impose a curfew and compel evacuation. *See generally*, Charter § 27.08.

The fifth and final paragraph under 27.08 expressly limits the Chair's emergency authority. In particular, emergency "executive orders shall be limited to those necessary to eliminate or contain conditions that threaten the health, safety, or welfare of the citizens of the county." Charter § 27.08(5).

According to local officials, Alachua County is "one of the safest places to be in the pandemic."[4] The County's overall positive rate has been as low as 1.6%. There

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[4] According to statements made by the presidents of the University of Florida and Santa Fe Community College on May 13, 2020 as reported in the Gainesville Sun. UF president Kent Fuchs said "I can't think of any city, any county, any state I'd rather be in than right here in Gainesville[.]" *See* Gainesville Sun, "UF and Santa Fe presidents talk about gradual re-opening of their schools," (May 15, 2020), https://www.mainstreetdailynews.com/news/local/uf-and-santa-fe-presidents-talk-about-gradual-re-opening-of-their-schools/article_afd7dc46-96c3-11ea-89b1-33905715ed69.html.

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have been only two deaths in the County.[5] Compared to 2018's influenza season where 27 Alachua County residents died, Alachua County's COVID-19 experience has been relatively very mild. App. 391. At the time of drafting this brief, only one person had been admitted to the hospital for COVID-19 during the entire previous 7-day period.[6]

Alachua County's Chair has literally worked overtime to protect the health, safety, and welfare of residents of the county. In fact, Alachua County has entered more emergency orders than any other county except Miami-Dade.[7]

The Parties: Appellant Justin Green

The Appellant is a retail and commercial nurseryman who has lived in Alachua County for a long time. App. 154. He operates his successful business here. *Id.* Since the beginning of the COVID-19 epidemic, Justin has tried his best to operate his nursery—especially the retail side of the shop—to the highest standards of personal protection possible in order to ensure the safety of his employees and his customers. Justin cares deeply about the health and welfare of his customers, employees, neighbors, and fellow residents. From the beginning of the epidemic, he has installed

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[5] There have also been 9 deaths in the Parklands nursing home facility, located in Alachua County, which is not an issue of community spread of the virus, but represents an altogether different problem.

[6] As of June 20, 2020.

[7] Institute for County Government, *County COVID-19 Policies and Orders* (2020), https://flicg.org/county-by-county-covid-19-information.

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hand sanitizing stations in his nursery, marked social distancing guidelines in the yard and the store, installed signs reminding customers of safe practices, and provided face masks to his employees,[8] among other things. He trains and screens his employees to identify any symptoms, which—given the strenuous labor conditions—would be immediately obvious to others.

Justin and his employees mostly work outdoors, all day long. They typically begin work very early in the morning after the sun rises and tend to work until sundown. Justin has learned that masks don't work especially well when combined with toilsome—at times back-breaking—outdoor labor, and pavers, weed killer, fertilizer, plants, boulders, digging, heavy machinery, the hot sun and dirt. Tons of dirt. The masks make breathing difficult, quickly become soaked with sweat, are rapidly soiled, and are easily damaged or lost.

Even though the County only requires masks indoors, his employees constantly move in and out of the nursery yard and the retail store to serve customers; they have to keep their masks on, or hanging on their neck, constantly pulling the masks on and

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[8] Justin was providing his employees with masks even before the County ordered them, to make his customers feel comfortable and to be prudent. The difference is, where Justin previously could use common sense about when masks were employed, the current Mask Mandate leaves no room whatsoever for common sense.

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off, and touching them. *Id.* The employees have learned that repeatedly taking the masks off and setting them down somewhere is an even worse idea.

Justin has never been diagnosed with COVID-19. *Id.* He has never had any symptoms of COVID-19, he doesn't know anyone who has had the disease or even know *of* anyone who has had it. Justin has tested negative both for COVID-19 and for antibodies to COVID-19. *Id.* In other words, he has never come into contact with the virus. None of his employees have ever been diagnosed with or had any symptoms of COVID-19, or knowingly come into contact with anyone who has.

Due to lost, damaged, soiled, or mislaid masks, Justin has had to enter proscribed areas of the County without a mask. *Id.* He knows it will happen again. Despite his best efforts, he is at imminent risk of prosecution by the County for failing to comply with the Emergency Order. Justin also feels a deep, visceral sense of discomfort with wearing masks *at all* in certain settings, due to their historic negative symbolism, the risks attendant to using masks (both medically and socially), and for the other reasons explained later in this Brief, but wears them anyway to comply with the Emergency Order.

The Mask Mandate

The Governor's orders don't require citizens to wear masks. No regulatory body requires citizens to wear masks.

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As of this writing,[9] the current form of the mask mandate is found in the Second Amendment to Emergency Order No. 2020-25 (the "Emergency Order"). App. 483. The Mask Mandate is located in paragraphs 4 and 15 of the Emergency Order. Paragraph 4 requires all citizens to wear facial coverings (masks) when obtaining essential goods and services in the County. In full, paragraph 4 provides:

> 4. Use of facial coverings.
>
> a. Persons working in or visiting grocery stores, restaurants, in-store retail establishments, pharmacies, construction sites, public transit vehicles, vehicles for hire, along with locations where social distancing measures are not possible **shall wear facial coverings** as defined by the CDC.
>
> b. Facial covering includes any covering which snugly covers the nose and mouth, whether store bought or homemade, and which is secured with ties or ear loops. The Centers for Disease Control provide examples of homemade facial coverings. Persons should not utilize N95 rated masks, as those are critical supplies for health care workers, police, fire, emergency management, or other persons engaged in life/safety activities. Persons who wear facial coverings should review the CDC and Florida Department of Health guidelines regarding safely applying, removing, and cleaning face coverings.
>
> c. A facial covering shall not be required for children under six, persons who have trouble breathing due to a chronic pre-existing condition or individuals with a documented or demonstrable medical problem. It is the intent of this provision that those individuals who cannot tolerate a facial covering for a medical, sensory or any other condition which makes it difficult for them to utilize a facial covering and function in public are not required to wear one. It is recognized

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[9] Because, pursuant to the Charter, the order must be renewed every 7 days, the name/number of the order changes frequently.

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that this requirement is broader than what might be considered to be a covered condition under the Americans with Disabilities Act.

d. This Emergency Order does not change or alter any social distancing requirements imposed by this or in any other emergency order.

e. This Emergency Order does not change any requirements for wearing facial coverings imposed by regulatory bodies or orders from the Governor.

f. Facial coverings do not have to be worn while eating or drinking.

Emergency Order, ¶ 4 (emphasis added, footnotes omitted), App. 487-88.

Paragraph 15 of the Emergency Order provides an enforcement mechanism:

> 15. A violation of section 4 of this Order is a noncriminal infraction. A violation of section 4 of this Order does not authorize the search or arrest of any individual [sic] prior to issuing any citation the individual will be asked to comply with the order or be able to explain how 4(c) applies to them. Failure to comply with the requirements of section 4 of this Order presents a serious threat to the public health, safety, and welfare, pursuant to Chapter 162, Florida Statutes, **and a citation may be issued immediately** for such violation. The County shall enforce the first violation of section 4 of this Emergency Order through a fine of $125.00 to the violator. The second violation of section 4 of this Emergency Order shall be subject to a fine of $250.00 to the violator. All subsequent violations of section 4 of this Order shall constitute a Class V violation under Article II, Chapter 24 of the Alachua County Code of Ordinances, requiring a mandatory court appearance and subject to a fine not to exceed $500.00. All other remedies available at law or equity, including injunction, remain available to the County, even after issuance of a citation. The municipalities may enforce this Order as provided by Florida law and municipal code.

Emergency Order, ¶ 15 (emphasis added), App. 489-90.

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The underlined portion of paragraph 15 (above) was added in the most recent amendment to the Emergency Order. The Order now requires a conversation between a county enforcement official and a resident. The resident will be required to "explain how 4(c) applies to them." In other words, a resident who relies on a medical exemption must disclose their private medical condition to the county's enforcement official or receive a fine.

SUMMARY OF ARGUMENT

The question about whether face masks "actually work or not" (or are even a good idea) is **not** an issue before this Court.

Citizens have hotly debated whether masks are effective or should be mandatory for a very long time. After the City of San Francisco required masks during the 1918 influenza pandemic, up to 5,000 citizens formed an "anti-mask league" and began a petition drive seeking to repeal the mask ordinance. As now, authorities then disagreed on whether masks were effective or should be required. A few months later in early 1919, the city backed down and lifted the mask requirement.[10]

We haven't made much progress since then. Paul Myers, the Administrator for the Florida Department of Health in Alachua County, presented the County with a commentary prepared by researchers at the University of Illinois. App. 341. The

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[10] Wikipedia, "Anti-Mask League of San Francisco," (June 22, 2020), https://en.wikipedia.org/wiki/Anti-Mask_League_of_San_Francisco.

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commentary cited fifty-two (52) studies each concluding that cotton face masks are ineffective or even harmful when used either as virus source control or PPE. *Id.* It also made common-sense points like noting that coronavirus had spread rapidly in Hubei province even though mask wearing is widespread there. *Id.* Myers himself recommended against adopting the mandatory mask requirement. App. 307, Tr. 28:11-13; 28:15-22.

The County assembled its own different set of studies and research that in turn attested to the effectiveness of masks when used as source control. The best we can say is that the authorities have not been able to figure it out during the intervening years since 1919. That the authorities are in conflict about this is not a fact in dispute.

But—again—whether face masks "actually work or not" is not the issue.

If the mask mandate does <u>not</u> facially impair the exercise of Justin Green's fundamental constitutional rights, and if the County <u>has</u> the emergency authority to require face masks, then Justin Green's appeal should fail. Else the injunction should be entered, and the County provided an opportunity to meet strict scrutiny. Those are the only two issues.

The County has no legal authority under Florida statute or its charter to mandate that its residents wear face masks. In fact, Alachua County's charter prohibits well-intentioned but not-strictly-necessary precautions like the Mask Mandate. If Alachua

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County's charter precludes authority for the County to require its residents to wear masks, then the Mask Mandate must fall.

The Trial Court's conclusion that the mask mandate does not facially impair the exercise of any constitutional right rests on two flawed legal premises. The two premises are that (1) Floridians have no broad constitutional right to be let alone by the government, and (2) Floridians lose their privacy rights when in public locations. Both premises are wrong. The Trial Court misapplied the law. The Florida Constitution's Right of Privacy expressly contradicts the first premise, as does abundant case law interpreting that right. Second, both the U.S. Supreme Court and the Florida Supreme Court have found that privacy rights do exist in public locations, at least whenever citizens seek to preserve those rights.

The Trial Court also wrongly used law related to motorcycle helmets and seatbelts to conclude that masks are merely "safety equipment." Unlike seatbelts and helmets, masks have a long and storied history as symbolic speech. Seatbelts and helmets do not have any history as symbolic speech. Courts have found—again and again—that the symbolic message that masks convey is reprehensible and socially corrosive. Legislatures have tried to ban mask wearing wherever they could. We punish people more severely if they commit crimes while wearing masks—*just because* they wore a mask.

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Neither do seatbelts or helmets draw the same broad social condemnation that masks do; condemnation which seems universally to cross cultures and eras. To the contrary, seatbelts and helmets have historically been regarded positively by most people, have never been considered symbolic speech, are not associated with ugly periods of history, and do not have viscerally negative connotations attached.

The Mask Mandate compels symbolic speech; inadvertently compelling symbolic speech that society has long condemned, and inadvertently increasing the risk to the community at large from violent crime and being mistaken for a criminal.

Masks also interfere with or eliminate a lot of non-verbal speech, like *facial expressions*. Seatbelts and helmets do not interfere with speech at all. By covering a person's face, masks obscure or delete what has long been considered a protectable privacy interest: a person's likeness. Seatbelts and helmets do not obscure or delete a person's likeness or any other long-recognized protectable interest.

Masks are categorically different from seatbelts and helmets in ways that impair the free exercise of fundamental constitutional rights. The Trial Court erred when it relied on seatbelt law and motorcycle helmet law to support its conclusion.

Masks may well have some role to play in controlling the pandemic. Even if the Court agrees that the Mask Mandate impairs the free exercise of fundamental constitutional rights, the County may yet meet strict scrutiny and the mandate will survive—but the injunction should be granted. And even if the County lacks authority

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to require face masks, the Governor or the State might yet have that authority and could require masks. Finally, the County has less intrusive means available to it for achieving its goals related to mask wearing.

STANDARD OF REVIEW

"We review a trial court's order on a request for temporary injunction in a hybrid format: The court's factual findings are reviewed for an abuse of discretion, whereas its legal conclusions are reviewed de novo." *Fla. Dep't of Health v. Florigrown, LLC*, 44 Fla. L. Weekly D1744 (Fla. 1st DCA July 9, 2019), *review granted,* SC19-1464, 2019 WL 5208142 (Fla. Oct. 16, 2019) (internal quotes and citations omitted).

A facial challenge to a statute's constitutional validity may be raised for the first time on appeal. *See State v. Johnson*, 616 So.2d 1, 3 (Fla. 1993); *Trushin v. State*, 425 So.2d 1126 (Fla. 1982).

ARGUMENT

I. Since the County did not—could not—prove that face masks are strictly 'necessary' to contain the spread of the virus, it lacked authority to order the Mask Mandate.

Justin Green has alternatively argued that the County lacks authority to mandate masks. The Trial Court's Order mentioned the authority issue in its opening paragraphs, App. 5, but then failed to rule on the issue. The Trial Court should have

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granted the injunction because the County did not show that it had authority to order mandatory masking The Trial Court erred by failing to rule on the issue of authority.

The Wisconsin Supreme Court recently faced a similar—bigger—question: whether to invalidate, not just a mask order, but all the state's mitigation restrictions because that state's emergency order lacked statutory authority. Acknowledging that the state's officials do have extensive power in emergencies, that Court nevertheless held:

> We do not conclude that [Secretary-designee of the Department of Health Services Andrea] Palm was without any power to act in the face of this pandemic. However, Palm must follow the law that is applicable to state-wide emergencies. We further conclude that Palm's order confining all people to their homes, forbidding travel and closing businesses exceeded the statutory authority of Wis. Stat. § 252.02[.]

Wis. Legislature v. Palm, 391 Wis. 2d 497, 507 (Wi. 2020).

The problem in that case was that Secretary Palm had failed to work with the Wisconsin legislature to develop the emergency order as the emergency statute explicitly required. *Id.* at 505-506. She had good intentions. But Palm obviously knew that the Wisconsin legislature didn't agree with how she wanted to implement the mitigation measures. In the emergency, Palm surely felt like there was just not enough time to engage in the potentially lengthy and difficult democratic process required by the emergency powers statute.

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The courts of that state—ultimately its supreme court—were required to help the health secretary align with the collective wisdom of the statutory powers and limitations that fueled her emergency authority.

Alachua County's emergency powers are not unlimited. For instance, the County's emergency orders are temporary and are supposed to expire after seven (7) days. Charter § 27.07(1). Also, the County's voters—in granting those broad powers—explicitly limited the County's emergency orders with a kind of built-in "strict scrutiny test." *See* Charter § 27.08(5).

The County identified Section 27.08(1)(d) of the Alachua County Charter as the basis for its authority to require residents to wear face masks to purchase essential goods or services.[11] App. 148, Response, p. 18. The section provides that in a state of emergency, the County may "regulate the participation in … any business activity[.]" Charter § 27.08(1)(d).[12]

But Section 27.08(5) also *explicitly limits* County emergency orders to those that are necessary to eliminate or contain threatening conditions:

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[11] The Order references the existence of the authority issue in its introduction, but does not mention it again.

[12] Even if this broad provision could be construed to give the County the authority to mandate the wearing of masks to obtain essential goods and services, such a reading would just make § 27.08(1)(d) unconstitutional for all the reasons described above. The Court should avoid interpreting a statute in a way that would render the statute unconstitutional.

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> In ordering and promulgating any executive order, the official authority shall rely on the advice and input from available county staff, as well as state and federal disaster/emergency management officials. Such executive orders **shall be limited to those necessary** to eliminate or contain conditions that threaten the health, safety, or welfare of the citizens of the county.

Section 27.08(5), Alachua County Charter (emphasis added).

While in some contexts the word "necessary" could be read broadly, such as "do whatever you think is necessary," it cannot be read that way here. The words "shall be limited" require the word "necessary" to be read in its narrowest sense.

The Trial Court did not find—nor could it—that masks were necessary to eliminate or contain the virus.[13] Instead, the Trial Court acknowledged that there was "conflicting evidence as to the extent of the efficacy of facial coverings." App. 9, Order, p. 5. The Trial Court explicitly described the Mask Mandate as "potentially reducing the spread of COVID-19[.]" App. 10, Order p. 6 (emphasis added). So, while masks may provide *some* salutary effect, the County's emergency orders are "*limited* to those *necessary* to eliminate or contain" the virus. If the Charter forbids it—and the County has no other source of authority—then the ordinance must fall, and this Court should strike down the Mask Mandate.

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[13] Such a finding would be curious in light of the at least 61 other Florida counties do not require masks, and many of those counties are faring even better than Alachua County … which was already well past the virus' "peak" by the time the mask mandate came along.

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In Alachua County, while a single citizen (the chair of the county commission) can unliterally issue emergency orders whenever a state of emergency exists, Charter § 27.08, his or her orders should automatically expire in seven days. Charter § 27.07(1). The residents of Alachua County broadly defined particular categories of things that the County *can* control in emergent situations—like closing businesses, regulating the sales of certain goods and services, imposing curfews and the like. Charter § 27.08(1).

But the residents of Alachua County didn't cede *everything*. For one thing, there are areas of emergency control that simply aren't provided for under Section 27 of the Charter. Perhaps most tellingly, Section 27.08(5) is a sort of "strict scrutiny" standard by which all emergency lawmaking must be tested. The County's emergency executive orders "shall be limited to those necessary" to contain the emergency. "Shall be." "Limited." "Necessary." These are not words of expanded powers. Just the opposite, they are explicit words of limitation.

Because the County did not prove—and cannot prove—that masks are strictly necessary to eliminate or contain the spread of the virus, it acted without authority, and the Mask Mandate must be enjoined.

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II. The County's Mask Mandate facially impairs Justin Green's First Amendment rights, his Right to Privacy, and other fundamental rights.

A. The Trial Court misapplied the law supporting its conclusion that the mask mandate does not impair the exercise of any constitutional rights.

The logic underpinning the Trial Court's conclusion rested on two premises. The two premises were that (1) Floridians have no broad constitutional right to be let alone by the government, and (2) Floridians lose their privacy rights when in public locations. Both of the Trial Court's premises are wrong.

In its Order Denying the Temporary Injunction, the Trial Court said:

> … there is no broad legal or constitutional "right to be let alone" by government.

App. 7, Order p. 3. (*citing Picou v. Gillum*, 874 F.2d 1519, 1521 (11th Cir. 1989)).

Not so. The Florida Constitution does provide for a "right to be let alone:"

> Right of privacy.—Every natural person has **the right to be let alone** and free from governmental intrusion into the person's private life except as otherwise provided herein.

Fla. Const. Art. I, § 23 (emphasis added).

And, the constitutional right of privacy *is* broad:

> Since the people of this state exercised their prerogative and enacted an amendment to the Florida Constitution which expressly and succinctly provides for a **strong right of privacy** not found in the United States Constitution, it can only be concluded that **the right is much broader in scope than that of the Federal Constitution**.

Gainesville Woman Care, LLC v. State, 210 So. 3d 1243, 1252 (Fla. 2017) (emphasis added).

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Our Supreme Court said that the right to be let alone from the government is not only broad but also strong, as strong as it possibly can be:

> [T]he drafters of the privacy amendment rejected the use of the words 'unreasonable' or 'unwarranted' before the phrase "governmental intrusion" in order to make the privacy right **as strong as possible**.

Id. (emphasis added).

As to its second premise, the Trial Court stated—without qualification—that:

> There is **no recognized right** to a reasonable expectation to privacy in a public location[.]

App. 6, 10, Order pp. 2, 6 (emphasis added).[14]

Not so. The U.S. Supreme Court, interpreting the narrower right to privacy under the U.S. Constitution, held:

> [W]hat [a person] seeks to preserve as private, **even in an area accessible to the public**, may be constitutionally protected.

Katz v. United States, 389 U.S. 347, 350-51 (1967) (holding that citizens have privacy rights when they speak into public telephones) (emphasis added).

The Florida Supreme Court has overturned unconstitutional laws by finding that a right to privacy exists in public locations. For example, the Court has invoked the right of privacy in several cases related to curfews. *See e.g. State v. JP*, 907 So. 2d 1101 (Fla. 2004) (finding that the juveniles' fundamental rights to privacy were

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[14] The Florida Supreme Court has suggested that laws *prohibiting* mask wearing in public were unconstitutional. *Robinson v. State*, 393 So.2d 1076 (Fla. 1980). If a law prohibiting wearing masks is unconstitutional, wouldn't a law requiring masks also be unconstitutional?

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burdened by curfew ordinances). By its very definition, a curfew pertains only to areas accessible to the public. The very notion of a "curfew"—which is an order removing the right to be in public locations—requires evaluation of rights that exist in those same public locations.

Finally, the Trial Court's interpretation of the law would eviscerate Fourth Amendment protections in public places, such as protections from unreasonable searches and seizures. *See e.g. Warden v. Hayden,* 387 U.S. 294 (1967) (observing that a principal objective of the fourth amendment is the protection of privacy interests).

Because the Trial Court first denied the existence of a "constitutional right to be let alone," App. 7, Order p. 3, and then denied that citizens have any privacy rights in public locations, App. 6, 10, Order pp. 2, 6, the Trial Court was able to conclude that the County's emergency order requiring citizens to cover their faces with masks in order to obtain essential goods and services did not impair the exercise of *any* fundamental constitutional right:

> [T]he facial covering requirement does not violate any of the constitutional rights asserted by the Plaintiff …
>
> The requirement to wear a facial covering during the limited circumstances set forth in the ordinance is a minimal inconvenience[.]

App. 10, Order p. 6. The Trial Court also held that compelled masking had nothing whatsoever to do with personal medical decisions or speech. *Id*.

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The Trial Court cited *Stall v. State* for the proposition that there is no "absolute guarantee against all governmental intrusion into the private life of an individual" under the Florida Constitution's right to privacy. 570 So.2d 257, 262 (Fla. 1990).[15]

Apart from that single reference, the Trial Court let the Florida Constitution alone.

The Trial Court's two logical premises—that there is no constitutional right "to be let alone" and that there is no right of privacy in public locations—are wrong as a matter of law. The two erroneous premises undermine the Trial Court's conclusion.

The Trial Court supported its flawed conclusion by examining law relating to "safety equipment;" to wit, mandatory seat belts and mandatory motorcycle helmets. But, as we will see, masks are something different altogether; they are not like ordinary safety equipment; they are demonstrably different from seatbelts or motorcycle helmets. First, there is no broad scientific controversy about whether seatbelts and helmets "actually work," nor are "critical risks" posed by their use. But even more significantly, as many other courts have eloquently stated, masks (and the faces they cover)—unlike seatbelts and helmets—occupy a unique role historically and fundamentally, particularly as related to speech. Masks *are* symbolic speech.

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[15] Justin Green concedes that his broad right to privacy is not *absolute*. For example, after it meets its burden and passes strict scrutiny, the County's Mask Mandate might legitimately intrude into a citizen's private life.

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B. The Trial Court misapplied the law related to seatbelts and motorcycle helmets. Masks are symbolic speech with an awful historical legacy; Seatbelts and Helmets are not.

If masks are "just" safety equipment and not particularly different from seatbelts or motorcycle helmets, then Justin Green likely loses—and the County likely wins—on his constitutional issues. Courts have found helmet and seatbelt requirements to be constitutional.

The Trial Court said that:

> [T]here is little that could be termed private in the decision whether to wear **safety equipment** in public.

App. 7, Order p. 3 (emphasis added, internal brackets and cites omitted, *citing Picou*, 874 F.2d at 1521-22).

But the situation is not that simple. Masks are not like ordinary safety equipment. Not at all.[16] For one thing, masks have a long, storied history of symbolizing threats, intimidation, and violence. Seat belts and helmets have no history like that. While the legislature has never tried to outlaw seatbelts or motorcycle helmets, Florida *has* tried to ban mask wearing in public:

> No person or persons over 16 years of age shall, while wearing any mask, hood, or device whereby any portion of the face is so hidden, concealed, or covered as to conceal the identity of the wearer, enter

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[16] Certainly, there are common industrial types of masks like gas masks, painters' masks, and the like, which clearly safety equipment. They are not generally worn in public and are categorically different from the masks mandated by the County, which include cotton bandanas and other kinds of masks just like the ones various courts have historically condemned.

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> upon, or be or appear upon any lane, walk, alley, street, road, highway, or other public way in this state.

§ 876.12, Fla. Stat. Ann.[17]

Florida is not alone. Other states have tried to prevent their citizens from wearing masks. They've done so because masks *are* an offensive message; mask wearing is often considered to be symbolic speech. Also, people who wear masks to conceal their identity have long established the mask as an implied threat of violence and intimidation. For example, in one recent case, the Eleventh Circuit noted the plaintiff's argument that his mask was symbolic speech without controversy. And, it noted that the Georgia's Supreme Court found the symbolic speech to be *so* harmful that it found a compelling state interest in banning masks:

> Miller claimed that by prohibiting him from wearing a mask in public, the statute violated his **right to engage in symbolic speech**.
>
> … [T]he Georgia Supreme Court determined that the State had a compelling interest in providing such protection, and that the mask statute furthered that interest by prohibiting **the "intimidation, violence, and actual and implied threats" <u>often associated with</u> public mask-wearing**.

Gates v. Khokhar, 884 F.3d 1290, 1299 (11th Cir. 2018), *cert. denied,* 139 S. Ct. 807 (2019) (emphasis added).

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[17] The supreme court suggested that the statute to be unconstitutionally overbroad, *Robinson*, 393 So. 2d at 1076, so the legislature enacted Fla. Stat. § 876.155, requiring criminal intent while wearing the mask to trigger criminal liability under § 872.12.

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In other words, Georgia's Supreme Court found that a mask *ban* met strict scrutiny.[18]

Society has long considered that masks communicate hateful criminal ideas that make criminal activity worse somehow, and to this day society seeks to discourage mask wearing wherever it can. This is not the case for seatbelts and helmets. While the legislature has never tried to increase criminal penalties just because a person was wearing a seatbelt or helmet while committing a crime, Florida does increase criminal penalties just because a person *wears a mask* while committing a crime. *See* § 775.0845, Florida Statutes (reclassifying crimes to the next higher felony or misdemeanor if citizen was wearing and mask while committing crime); *also see Cabal v. State*, 678 So. 2d 315, 317 (Fla. 1996) ("We find that the plain language of section 775.0845, which is entitled 'Wearing mask while committing offense; *enhanced penalties*', requires that the *penalty be increased*").

Courts have long condemned the historically negative association between mask wearing and criminal conduct, finding that masks are symbolic speech—hateful speech condemned by all right-thinking people—that communicates violence and intimidation:

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[18] To thread the constitutional issue, the "Georgia Supreme Court has also imposed a *mens rea* element onto the statute, requiring that the wearer of the mask know or reasonably should know that his actions give rise to a reasonable apprehension of intimidation, threats, or impending violence." *Id.*

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> We know that public disguise is a particularly effective means of committing crimes of violence and intimidation. **From the beginning of time the mask or hood has been the criminal's dress**. It conceals evidence, hinders apprehension and calms the criminal's inward cowardly fear.

State v. Miller, 260 Ga. 669, 671 (Ga. 1990) (internal quotes and brackets omitted, emphasis added).

Seatbelts and helmets have never been described in such derogatory terms, nor have the states actively tried to thwart their use or punish people for using them.

Case law from all around the country recognize the negative messages symbolically implied by the wearing of masks. You can't find many cases praising masks—if you can find any at all. In 1995, the Seventh Circuit found that wearing masks communicated intimidation and found that allowing masked people into a courthouse would be "the height of irresponsibility[.]" Not *just* irresponsibility. The <u>height</u> of irresponsibility:

> The wearing of a mask inside a courthouse implies intimidation. Imagine what a witness in a criminal case would think, or a juror, if either saw masked people sitting in the spectator section of the courtroom. Considering that courts nowadays, especially state courts hearing criminal and domestic relations cases … have acute security problems, it would be the *height of irresponsibility* to allow masked people into courthouses. The very courthouse involved in this case has, the record shows, been the scene of a crime committed by a masked man.

Ryan v. Cty. of DuPage, 45 F.3d 1090, 1092 (7th Cir. 1995) (emphasis added).

The Seventh Circuit thought that allowing masked people into a courthouse would be the height of irresponsibility … not *just* irresponsible … it would be the

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most irresponsible thing that the court could possibly do. And the rationale for that strong statement is based on what masks can *imply*—i.e., hateful symbolic speech.

Social concern over the messages communicated by mask wearing is not limited to the United States. Even within the last two decades, many European countries have found face masking to be so socially harmful that they have fully or partially banned the practice, even where the bans intrude upon other fundamental freedoms.[19]

C. The Mask Mandate impairs the exercise of First Amendment freedoms of speech and compels dangerous speech.

Making a citizen cover her face both interferes with her speech and compels her to convey certain unwanted messages—thereby impairing fundamental rights of

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[19] "France and Belgium passed general bans against covering the face in public in 2010 and 2011, respectively. The Italian parliament reviewed a similar bill in at the end of 2011. The Netherlands, Norway, Spain, and several states of Australia have all introduced measures imposing fines or other penalties for wearing face-veils in any public space. Syria, Egypt, and Sweden have all passed bans against face-veils in public schools. These measures grant school supervisors and education boards various powers to expel students or fire teachers found in breach. The British government, though it has not thus far passed any laws regulating face-veils, has upheld the discretion of public schools in enforcing uniform policies that preclude the wearing of face-veils. Various other countries, including Tunisia, France, Germany, Kosovo and Singapore, have already implicitly banned face-veils in public schools through general bans restricting Islamic attire." Evan Darwin Winet, Face-Veil Bans and Anti-Mask Laws: State *Interests and the Right to Cover the Face*, 35 Hastings Int'l & Comp. L. Rev. 217, 218 (2012). Commentators have generally remarked that such bans would probably be unconstitutional in the United States.

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free speech and autonomy. Courts have described the face's well-understood and unique role in communication:

> The face has a unique role in communication. No other part of the body serves as specific a function for personal identity and for expression of thought and emotion.... A degree of normalcy is expected for effective verbal and non-verbal communication.... The face is such a prominent feature of a person that it plays a critical role in his physical, psychological and emotional make up.

Gonzales v. Advanced Component Sys., 949 P.2d 569, 572 (Colo. 1997) (*citing* AMA Guides § 9.2 (3d ed. rev.1990), ellipses in original).

Any ordinance requiring Justin Green to cover his face also impairs his face's "unique role in communication," his "personal identity," and his ability to "express[his] thought and emotion." That, after all, is just what the term "facial expressions" means. Justin's face plays a "critical role[] in his physical, psychological and emotional make up." A masked face is not at all "normal," but a "degree of normalcy is expected for effective verbal and non-verbal communication."

The same thing a person says with a smile means something completely different when said with a scowl or even with a neutral expression. The Mask Mandate materially impairs Justin's verbal and non-verbal communications—his facial and verbal *expressions*—preventing him from speaking with a degree of normalcy and expressing his thoughts, feelings, and personal identity.

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Not only does the Mask Mandate impair Justin's ordinary verbal and non-verbal communications, but it also substitutes other undesired messages that are not Justin's, which he is compelled to communicate by the County.

Even apparel can be closely akin to "pure speech":

> [T]he wearing of armbands … was closely akin to 'pure speech' which, we have repeatedly held, is entitled to comprehensive protection under the First Amendment.

Tinker v. Des Moines Indep. Cmty. Sch. Dist., 393 U.S. 503, 505–06 (1969) (internal cites omitted).

First Amendment freedom of speech includes the right to refrain from speaking at all. *Janus v. Am. Fed'n of State, Cty. Mun. Emps., Council 31*, 138 S. Ct. 2448, 2463 (2018). "The right to speak and the right to refrain from speaking are complementary components of the broader concept of individual freedom of mind." *Wooley v. Maynard*, 430 U.S. 705, 714 (1977).

Because masks are undeniably symbolic speech, compulsory mask wearing is also compulsory speech. The County understands this. The chair of the Board of County Commissioners, "Hutch" Hutchinson, said that wearing a mask is the *only* way to communicate a virtuous symbolic message preferred by the County:

> [M]asks are the **only** outwardly visible **signal** that you are contributing to the solution.

App. 103, Robert K. Hutchinson Facebook Post, May 5, 2020 (emphasis added).

Black's defines "signal" as "1. A means of communication." Black's Law Dictionary (11th Ed. 2019). Signals are communication, and communication is

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speech. Hutchinson is saying that, by wearing a mask, you are communicating ... *speaking* ... the County's message that you are part of the solution (and not part of the problem).

In light of the case law cited above, perhaps it is not surprising that headlines consistent with historical fears about masks are beginning to appear in many areas. For example:

- "Bank robber wearing surgical masks has hit at least 6 banks across 3 counties, police say"[20]

- "Armed thieves are capitalizing on the fact that everyone's now wearing masks in public"[21]

- "There's been a surge in armed robberies in California as criminals use coronavirus face masks to hold up stores"[22]

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[20] Smyra, Ga. News, "*Bank robber wearing surgical masks has hit at least 6 banks across 3 counties, police say*" (Feb. 28, 2020), https://www.newsbreak.com/georgia/smyrna/news/0OHY7v4F/bank-robber-wearing-surgical-masks-has-hit-at-least-6-banks-across-3-counties-police-say

[21] Quartz News, "*Armed thieves are capitalizing on the fact that everyone's now wearing masks in public*" (April 14, 2020), https://qz.com/1837529/thieves-are-capitalizing-on-the-publics-use-of-covid-19-masks/ (criminal "used the highly sought-after protective gear to disguise his face and fingerprints during an eight-day crime spree").

[22] Insider News, *available online at*: "*Armed thieves are capitalizing on the fact that everyone's now wearing masks in public*" (April 14, 2020) ("Experts say that wearing masks anonymized people, emboldening them to criminal and deviant behavior").

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- "Coronavirus masks a boon for crooks who hide their faces"[23]

- "Crime Stoppers: Police trying to identify mask-wearing men from southwest Charlotte robberies"[24]

- "'Times are hard:' Man in surgical mask accused of robbing I-Drive hotel clerk"[25]

- "Increase in Criminal Use of Coronavirus Face Masks to Blend in While Committing Crimes, Police Warn"[26]

- "Mask-Wearing Cancer Patient Mistaken for Serial Bank Robber"[27]

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[23] Fox 6 Chicago, "*Coronavirus masks a boon for crooks who hide their faces*" (May 16, 2020), https://fox6now.com/2020/05/16/coronavirus-masks-a-boon-for-crooks-who-hide-their-faces/.

[24] Charlotte Observer, "*Crime Stoppers: Police trying to identify mask-wearing men from southwest Charlotte robberies*" (April 16, 2020), https://www.charlotteobserver.com/news/local/crime/article242049866.html#storylink=cpy.

[25] Click Orlando News, "'*Times are hard:' Man in surgical mask accused of robbing I-Drive hotel clerk*" (April 22k 2020), https://www.clickorlando.com/news/local/2020/04/22/times-are-hard-man-in-surgical-mask-accused-of-robbing-i-drive-hotel-clerk/.

[26] Newsweek, "*Increase in Criminal Use of Coronavirus Face Masks to Blend in While Committing Crimes, Police Warn*" (May 17, 2020), https://www.newsweek.com/criminals-using-coronavirus-covid19-face-masks-committing-crimes-police-fbi-warn-1504637 ("face coverings are now making life difficult for police tasked with identifying and apprehending crooks. They warn criminals are taking advantage of the situation").

[27] NBC 4 Los Angeles, "*Mask-Wearing Cancer Patient Mistaken for Serial Bank Robber*" (July 2, 2013), https://www.nbclosangeles.com/news/local/cancer-patient-mistaken-identity-bank-robber-montebello-surgical-mask-bandit/1954120 ("Police were called to the bank branch for what became an upsetting and confusing ordeal").

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- “I'm a black man in America. Entering a shop with a face mask might get me killed”[28]

These headlines are exactly what you would expect to see given the ages-old, storied history of face masks, their identity-concealing and evidence-eliminating effect, and their long-standing association with criminal conduct. When the County ordered the Mask Mandate, it did not weigh the risks to society from ubiquitous masking.

The Mask Mandate creates intolerable unintended consequences and risks. One unintended side effect of the Mask Mandate is to compel residents to participate in communicating—to whatever degree—masks’ historically hateful symbolic messages. The other unintended side effect is to create a favorable climate for violent crime and increase the risk that law-abiding citizens will be mistaken for criminals.

If the County wants to compel residents to symbolically communicate its message, or any message, it has to meet strict scrutiny first: and the Mask Mandate must be enjoined.

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[28] The Guardian, “*I’m a black man in America. Entering a shop with a face mask might get me killed*” (April , 2020), https://www.theguardian.com/commentisfree/2020/apr/07/black-men-coronavirus-masks-safety (“I trust the CDC’s guidance. But my fear of being mistaken for an armed robber is greater than my fear of Covid-19”).

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D. The Mask Mandate impairs fundamental liberty rights related to Justin's ability to control his own appearance and identity.

A person's appearance has long been associated with fundamental rights, implicating both federal privacy rights and First Amendment freedoms. Maybe the closest analogy would be cases involving regulations of hairstyles. For example, the Alaskan supreme court found a law regulating hairstyles unconstitutional under fundamental rights and that state's constitutional right of privacy, which is very similar to Florida's:

> [We previously] held that Alaskans have **a fundamental right to control their appearance.** We addressed a dispute over a school board's ability to regulate the appearance of school children and require that male students wear short hair. In establishing that **control of personal appearance was a fundamental liberty right**, we began by discussing the social history of personal appearance: "**Hairstyles have been the subject of great variety and individual taste and have traditionally been left to personal decision; they are manifestations of our diverse and numerous individual personalities**." We also stated that the right to control personal appearance implicated … "notions of a government of limited powers."

Sampson v. State, 31 P.3d 88, 93 (Alaska 2001) (emphasis added, internal citations omitted).

Like the appearance of our hair, the appearance of our face is a matter of control of our personal appearance. Our faces are the subject of great variety and individual taste. Just like our hairstyles—or maybe even more so—our faces are "manifestations of our diverse and numerous individual personalities." Maybe most significantly,

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control over the appearance of our faces has traditionally been left to our personal decisions. The "social history of personal appearance" necessarily includes our faces.

The Second Circuit has held that "a prisoner's choice of hair length and facial hair is a personal liberty protected by due process and that without evidence supporting the prison's rationale for prohibiting beards and goatees a prisoner could not be forced to shave." *Dwen v. Barry*, 483 F.2d 1126, 1130 (2d Cir. 1973).

Similarly, the Seventh Circuit overturned a school hair-length mandate, even referring to the rule as a "subtle form a state repression and tyranny":

> More recently the Supreme Court has recognized that **the special right of an individual to control his physical person** weighs heavily against arbitrary state intrusions. Indeed, unless the fundamental nature of the liberty claimed by plaintiff is recognized, the freedom guaranteed by the Bill of Rights could be significantly diluted through subtle forms of state repression and tyranny.

Crews v. Cloncs, 432 F.2d 1259, 1264 (7th Cir. 1970) (internal citations omitted, emphasis added).

Requiring citizens to cover up their faces with masks is far more destructive to their personal appearance, control of their physical persons, and ability to manifest their individual personalities, than is any requirement that their hair be worn a quarter-inch shorter.

At the Hearing, the County argued that controlling citizens' hairstyles was more invasive than "merely" covering their faces, describing haircuts as "permanent alterations to the body." App. 46, Tr. 31:13-14. We disagree. But even if hairstyles

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did—somehow—enjoy more constitutional protection than faces, we would hasten to point out that the County's Mask Mandate *does* implicate hairstyles. After all, the mask *completely eliminates* a citizen's ability to express themselves with their choice of whether and how to wear their facial hair. *See e.g. Fulton v. City of Phila.*, 922 F.3d 140, 156 (3d Cir. 2019), *cert. granted sub nom. Fulton v. City of Phila., Pa.*, 140 S. Ct. 1104 (2020) ("we held unconstitutional the Newark Police Department's policy that officers could not have facial hair").

So, the County's Mask Mandate interferes with fundamental rights related both to control of our faces' appearance *as well as* to hairstyles.

Mandatory masking tends to erode or destroy a citizen's manifested personality, his identity, his sense of, and the public projection of, his innate *self.* One reason people choose to wear face masks is because a mask conceals their identity and destroys evidence of their existence at a particular time and place. *See e.g., State v. Walker*, 444 So. 2d 1137, 1140 (Fla. 2d DCA 1984), *aff'd,* 461 So. 2d 108 (Fla. 1984) ("Obviously, a general prohibition against wearing a mask would assist law enforcement officers in determining the identity of persons involved in criminal activity"); *State v. Vidal*, 2016 WL 7189541 (Oh. 11th DCA 2016) ("stealth was proven when the defendant cinched his hood over his face to hide his identity"); *People v. Fort*, 14 Ill. 2d 491, 498 (Ill. 1958) ("The wearing of a scarf covering the

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lower part of his face indicates that precautions were taken to avoid identification and detection").

Masks also obscure or delete a person's "likeness" by covering their face—the essential part of the "likeness." The common law has traditionally found that a person's likeness—their face—is a protectable property interest and, when misappropriated, results in an invasion of the person's privacy.

There is a "long recognized … common law right of privacy which includes protection against appropriation, for the defendant's advantage, of the plaintiff's name or likeness." *Abdul-Jabbar v. Gen. Motors Corp.*, 85 F. 3d 407 (9th Cir. 1996) (internal cites, ellipses, and brackets omitted, emphasis added).

Florida law protects from misappropriation—as an invasion of *privacy*—a citizen's likeness. § 540.08, Fla. Stat. The Court has linked the right to control a person's likeness to the right of privacy. *Weaver v. Myers*, 229 So.3d 1118 n. 2 (Fla. 2017) ("the right to privacy … allows a person to control the use of his or her name and likeness").

The County's Mask Mandate conceals its residents' identities from each other. The mask destroys basic expressive communication, deletes peoples' sense of self, and erases evidence of their existence at particular places and times. The mask destroys or obfuscates residents' likenesses. Basic human modes of communication as simple as smiling when encountering a stranger are eliminated or destroyed by the

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County's mandate. These are all areas implicating fundamental rights, and none of them are implicated by helmets or seatbelts.

E. The Mask Mandate impairs the exercise of Justin Green's privacy rights related to medical decision-making and bodily autonomy.

Court found that the Mask Mandate was not a "medical treatment." App. 9, Order p. 5. The Trial Court applied the wrong legal standard. As a matter of law, masks do not need to be "treatments" in order to impair medical decision making. Because masks implicate "medical choices" and self-determination, the Mask Mandate impairs the exercise of Justin's fundamental privacy rights, so that the County's mandate must meet strict scrutiny.

Citizens enjoy a broad and well-recognized right to make their own medical choices. *See In re Guardianship of Browning*, 568 So. 2d 4, 11 (Fla. 1990). The right is broad enough to encompass *all* medical choices:

> Recognizing that one has the inherent right to make choices about medical treatment, we necessarily conclude that **this right encompasses all medical choices**.

Id. (emphasis added).

Our constitutional right to privacy includes the right to liberty and self-determination, and broadly "has been implicated in a vast array of cases dealing with personal privacy." *J.P.*, 907 So. 2d at 1115 . Even the federal right of privacy—"much" narrower than Florida's broad privacy right—protects the decision-making

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or autonomy zone of individual privacy interests. *Winfield v. Div. of Pari-Mutuel Wagering, Dept. of Bus. Regulation*, 477 So. 2d 544, 546 (Fla. 1985).

If masks have any effect at all, that effect is intended to reduce the severity of a *medical* condition by possibly preventing transmission of some of the virus through the use of a physical barrier. That's what a mask is in a medical sense—a barrier. But the evidence from the World Health Organization warns that wearing masks poses "critical risks" to the health of mask wearers. App. 355. The County does not dispute this. Simply put, on the benefit side, wearing masks *might* decrease the chance that a small number of infected wearers could accidentally sneeze or cough without covering and possibly spread the virus. But mask wearing also potentially *increases* the risk that the majority of otherwise healthy, non-infected wearers could be more likely to be infected whenever they use masks. App. 355.

To reconcile the risks and benefits requires a sort of balancing of harms. Wearing masks asks 98.2% of the population to take a medical risk that is not strictly necessary because they cannot spread the virus anyway.[29] Somebody has to make a critical decision … a *choice* … between the potential *medical* benefit versus the potential *medical* risk. That is a classic medical choice, which the County went ahead and made for its residents in their best interest.

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[29] At a positive rate of 1.8%, 98.2% of the County's population is presumably free from infection.

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Under both the federal and state constitutions, medical decision-making and bodily self-determination is a fundamental right. *See Browning*, 568 So. 2d at 10 (holding "[a]n integral component of self-determination is the **right to make choices pertaining to one's health**…this right encompasses all medical choices… and **does not involve what is thought to be in the patient's best interests**," emphasis added). The Trial Court erroneously applied a much more limited standard of "medical treatments" instead of the correct standard, "the right to make [all] choices pertaining to one's health." *Id.*

The County's mask mandate might be constitutional, but first it must meet strict scrutiny.

F. The Mask Mandate cannot permissibly impair the exercise of constitutionally protected conduct just because it was ordered in an emergency. It still must meet strict scrutiny.

Without a doubt, local governments have broad authority—and a moral responsibility—to act in emergencies to prevent harm befalling their residents. This is well-established law. In fact, the County's Charter specifically provides it with broad emergency powers under Section 27 of the County's Charter. For example, the County can close businesses, ban the sale of certain types of goods, and enter emergency orders signed only by the Chair. Charter§ 27.08(1).

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It is also well-established law that emergent conditions do not somehow override citizens' constitutional protections. When local government exceeds the bounds of its authority—as it is surely must sometimes be tempted to do in emergent conditions—citizens and the courts must provide a necessary correction:

> [I]f a statute purporting to have been enacted to protect the public health, the public morals, or the public safety … is, beyond all question, a plain, palpable invasion of rights secured by the fundamental law, it is the duty of the courts to so adjudge, and thereby give effect to the Constitution.

Jacobson v. Commonwealth of Mass., 197 U.S. 11, 31 (1905).

More recently, the 11th Circuit reinforced this principle, holding:

> [J]ust as constitutional rights have limits, so too does a state's power to issue executive orders limiting such rights in times of emergency … while states and the federal government have wide latitude in issuing emergency orders to protect public safety or health, they do not have *carte blanche* to impose any measure without justification or judicial review.

Robinson v. Attorney Gen., 2020 WL 1952370, at *5 (11th Cir. 2020).

There is nothing in the County's Charter suggesting that its citizens surrendered their constitutional rights to the County Commission in times of emergency. Just the opposite, in fact. So, the County must still meet strict scrutiny in order to establish that its Mask Mandate passes muster.

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III. Because the County lacked authority to order the Mask Mandate, and it impairs the exercise of Appellant's fundamental rights, the mandate must be enjoined.

The Trial Court failed to rule on the County's lack of authority and applied the wrong legal standard (rational basis) to the constitutional issues. It is axiomatic that if the County enacted an ordinance without authority, that ordinance must be enjoined.

Analyzed under the correct strict scrutiny standard, the Mask Mandate is presumptively unconstitutional, and the burden shifts to the State to prove both the existence of a compelling state interest and that the law serves that compelling state interest through the least restrictive means. *Gainesville Woman Care, LLC*, 210 So. 3d at 1252.

Where an ordinance is presumptively unconstitutional, and subject to strict scrutiny, it must be enjoined. This Court has said that:

> A statute enacted by the legislature may not restrict a right granted under the constitution and, to the extent that a statute conflicts with express or implied mandates of the constitution, the statute must fall.

Fla. Dep't of Health, 44 Fla. L. Weekly D1744.

This Court also said that "[i]mmediate injunctive relief is the essence of such suits and oftentimes the only effectual relief." *Id.* "[T]he law recognizes that a continuing constitutional violation, in and of itself, constitutes irreparable harm. The law also recognizes that implementation of an unconstitutional statute for which no adequate remedy at law exists leads to irreparable harm[.]"*Id.* (internal cites, brackets omitted).

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"The trial court … correctly applied strict scrutiny in determining Petitioners' likelihood of success on the merits because the law, both facially and based on evidence presented, clearly infringes on the constitutional right of privacy." *Gainesville Woman Care*, 210 So. 3d at 1246.

Nor can the violation of a citizen's constitutionally protected rights be adequately measured in dollars. In *Robinson*, the state conceded that there was no adequate remedy at law for the violation of constitutionally protected privacy rights. 2020 WL at *16 ("Defendants concede the unavailability of an adequate remedy at law if the law goes into effect and is found to be unconstitutional.").

The County lacked authority to order the Mask Mandate and did not meet the strict scrutiny standard at the Hearing. The Mask Mandate must be enjoined.

CONCLUSION

Government properly enjoys unusually broad power and authority during an emergency. Citizens temporarily trade away their normal democratic processes and protections so that officials can act quickly without the time-consuming impediments of democracy when action is immediately necessary to protect citizens' lives, health, and property. This voluntary tradeoff is especially important when things happen fast, like in insurrections, uprisings, hurricanes, floods and fires.

But—and this is a big but—we Floridians have never traded all our freedoms and democratic and constitutional rights for the security of giving complete authority

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to elected and unelected officials in emergencies. Over time—codified in statutes, charters, rules and codes—we citizens have defined the boundaries of even the very broad powers we've granted to our governments to act in emergencies.

Masks are nothing like seatbelts or motorcycle helmets. They are not "just" safety equipment. They're not just a "mere inconvenience." There is a reason that masks have been controversial for at least a hundred years, if not longer. There is a reason that face coverings are being banned in Europe *right now*—even though those cultures adhere to principles of religious freedom. The reason is that face masks invade historically protected areas of autonomy, privacy, and speech, and are viscerally repugnant to many, for good and true historical reasons.

Privacy rights are not just a luxury or libertarian excess. "The concept of privacy or right to be let alone is deeply rooted in our heritage and is founded upon historical notions and federal constitutional expressions of ordered liberty … The makers of our Constitution … conferred, as against the Government, the right to be let alone—the most comprehensive of rights and the right most valued by civilized men." *Winfield*, 477 So. 2d at 546.

If this Court agrees that the Mask Mandate impairs the exercise of historically protected fundamental constitutional rights, it would not necessarily mean that the Mask Mandate must fall. It would just require the Mask Mandate to be enjoined until the County proves the order can meet strict scrutiny.

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Justin Green also asks this Court to find that the County exceeded its statutory authority under Section 27.08(5) because the Mask Mandate will only "potentially"—not "necessarily"—reduce the spread of the virus, and the evidence presented at the Hearing established only that there was "conflicting evidence as to the extent of the efficacy of facial coverings." In this case, the Mask Mandate should be enjoined until the County can prove it meets the standard established by its Charter.

Finally, even if the County ultimately can't meet the statutory standard of "necessity" or strict scrutiny, it still has alternatives. There are less intrusive and more narrowly tailored means available to the County to achieve its goals. It could follow the less intrusive orders of other counties that strongly recommend face masks to residents. It could work with the Governor or the legislature to develop an emergency order that passes constitutional muster and is grounded in proper authority. It is a red herring to suggest that a decision in Justin Green's favor would create any prejudice or damage the health or well-being of Alachua County. Justin Green begs this Court to reverse the Trial Court and remand with instructions to enjoin the Mask Mandate.

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CERTIFICATE OF SERVICE

I HEREBY CERTIFY that a copy of the foregoing was filed with the Clerk of Court through the Florida e-Portal and that a copy was sent via electronic mail to the counsel listed below on this 29th day of June, 2020.

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CERTIFICATE OF COMPLIANCE

I HEREBY CERTIFY that this appendix was prepared in compliance with the requirements of Fla. R. App. P. 9.210(a)(2).

/s/Seldon J. Childers

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